

		asserted in a complaint or cross-complaint” in this action. (Code Civ. Proc., § 428.10; see ROA Nos. 171 [first amended complaint], 316 [Alai & TSC’s third amended cross-complaint]; see also ROA No. 471 [12712 LLC & TSC, Inc.’s operative first amended cross-complaint].) Cross-complainants’ request for sanctions is DENIED. Moving parties shall give notice.
53.	Chameleon EBikes, LLC v. RNR Group, Inc. 2023-01301129	Motion No. 1. Demurrer. Defendant Randy Morton’s Demurrer to Plaintiff’s Complaint is OVERRULED. (See Code Civ. Proc. § 430.10.) Defendant’s motion lacks a separate demurrer. To demur to a complaint, the demurrer must include a separate document called a Demurrer that identifies the party and pleading that is the subject of the demurrer, the grounds for the demurrer, and which causes of action are challenged and the grounds for the challenge. (See Calif. Rules Court, rule 1320 (a), (c); Code Civ. Proc. § 430.60.) As defendant has failed to file a demurrer, the court construes defendant’s motion as a demurrer on the grounds of uncertainty and a general demurrer. The demurrer on the grounds of uncertainty is overruled. The complaint is not so poorly drafted that Defendant cannot reasonably respond. (See <i>Khoury v. Maly’s of California Inc.</i> (1993) 14 Cal.App.4th 612, 616.) The general demurrer as to the 1st and 2nd causes of action also fails. The complaint alleges facts sufficient

	to state a cause of action for conversion and violation of Penal Code section 496. Defendant argues that service or process was inappropriate. When considering a demurrer, the court is limited to the allegations in the complaint, and anything that might be subject to judicial notice. (See <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) The facts showing any failure related to service are not on the face of the complaint, nor are they the subject of judicial notice. Thus defendant's arguments about defective service are not grounds to sustain the demurrer. Additionally, by filing this demurrer, defendant Morton made a general appearance in this action, precluding an attack upon service. (See Code Civ. Proc. § 1014; <i>Jarvis v Jarvis</i> (2019) 33 Cal.App.5th 113, 127, 244 CR3d 722 [defendant waives any defects in service by filing demurrer].) Defendant's demurrer includes a declaration that addresses the merits of the complaint. Because a declaration is extrinsic evidence, it is not properly before the court when ruling on a demurrer. (<i>Ion Equipment Corp v. Nelson</i> (1980) 110 Cal.App.3d 868, 881.) The court declines to consider defendant's declaration, any attached exhibits, the verification of the reply brief, or any additional arguments raised in the declaration. Defendant is ordered to file an answer, if any, to the complaint within ten days. The <i>proposed</i> answer filed on 06/20/23 (ROA 63) is not acceptable because Mr. Morton is not licensed to practice law, and cannot represent the entity co-defendant in this action. Motion No. 2. Motion to Strike. Defendant Randy Morton's Motion to Strike is DENIED on the grounds stated above. Additionally, the action is not barred by the statute of limitations because the complaint was filed within
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		months of defendant's wrongful conduct. (Compl. ¶¶ 29-33.) Defendant may wish to consider retaining legal counsel to represent him and his co-defendant in this action. Plaintiff shall give notice.
54.	Sanchez v. Nissan North America, Inc. 2021-01213189	Plaintiff Jose J. Sanchez' motion for reconsideration of this court's 2-6-23 order compelling arbitration is GRANTED. The court hereby reconsiders its prior 2-6-23 order compelling arbitration on its own motion, and now denies defendant Nissan North America, Inc.'s motion to compel arbitration. (Code Civ. Proc., § 1008 [authorizing reconsideration]; <i>Le Francois v. Goel</i> (2005) 35 Cal. 4th 1094, 1108 [court's power to reconsider interim rulings]; <i>Pinela v. Neiman Marcus Group, Inc.</i> (2015) 238 Cal.App.4th 227, 237 [court's power to reconsider ruling compelling arbitration].) While the instant motion for reconsideration was filed more than 10 days after the 2-6-23 order (Code Civ. Proc., § 1008, subd. (a)), the court has the power to reconsider its interim decisions, even if triggered by an improper motion. (<i>Le Francois</i> at 1108.) Further: "If a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." (Code Civ. Proc., § 1008, subd. (c).) Accordingly, because this court may reconsider its previous orders at any time (<i>Le Francois, supra</i>) the court will elect to do so in this instance and consider the motion notwithstanding its untimeliness. In this action, the agreement requires arbitration of disputes between plaintiff and the dealer. (See Chung Decl., Ex. 3, Para. 30 [requiring arbitration of "any claim or dispute . . . between you and us"].) It could have expressly required plaintiff to arbitrate disputes with the manufacturer – but it does not.